

Court No. - 3

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Upon a call given by High Court Bar Association, Allahabad, lawyers are abstaining from work.

Learned Standing Counsel is present.

Put up this case as fresh on 27.9.2023.

Order Date :- 13.9.2023

P.S. Parihar

Court No. - 3

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department prays for and is granted three weeks time to file counter affidavit. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

Put up this case on 03.11.2023 as fresh.

Order Date :- 27.9.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Sri Satendra Kumar Yadav holding brief of Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department prays for two weeks further time to file counter affidavit.

Place this case as fresh on 1st December, 2023.

It is made clear that no further time shall be granted.

Order Date :- 3.11.2023

Raj

Court No. - 3

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Counter affidavit filed today be kept on record.

Upon a proceeding being initiated under Section 135 of the Electricity Act, 2003, the petitioner was saddled with liability of Rs. 2,68,664/-. The petitioner filed an Appeal under Section 127 of the Electricity Act and when that was rejected, he filed a writ petition being Writ - C No. 2368 of 2007 wherein on 22.1.2007, the petitioner was directed to deposit Rs. 1,50,000/-.

Learned counsel for the petitioner states that he had deposited certain further amounts. The order dated 22.6.2023 states that out of the entire recovery amount only Rs. 32,664/- was due. How the order further states that the Rs. 4.48 lacs had to be paid by the petitioner be explained by the Electricity Department by means of a supplementary counter affidavit within a period of one week.

Place this petition as fresh on 7.12.2023.

Till the next date of listing, no coercive action shall be taken against the petitioner.

Order Date :- 1.12.2023

PK

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Siddhartha Varma,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

1. Calculation chart filed by the learned counsel for the Electricity Department is kept on record. A copy of the same be supplied to the learned counsel for the petitioner.
2. List this case as fresh on 21.12.2023.
3. The interim order dated 01.12.2023 shall continue till the next date of listing.
4. In the meantime, petitioner if so advised may negotiate with the electricity department with regard to the one time settlement in pursuance of the scheme which has been floated by the Government vide Government Order dated 04.11.2023.

Order Date :- 7.12.2023

Prajapati

(Syed Qamar Hasan Rizvi,J) (Siddhartha Varma,J)

Court No. - 3

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

On the request of learned counsel for the petitioner, place this case on 4.1.2024 as fresh. Interim order, if any, shall continue till the next date of listing.

Order Date :- 21.12.2023

GS

(Shekhar B. Saraf, J.)

(Siddhartha Varma, J.)

Court No. - 29

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Learned counsel for the petitioner states that his rejoinder affidavit is under preparation.
2. List on 18.01.2024, as fresh.
3. Interim order is extended till the next date of listing.

(Kshitij Shailendra, J.)

(Manoj Kumar Gupta, A.C.J.)

Order Date :- 4.1.2024

Mukesh Pal

Court No. - 21

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. As prayed by learned counsel for the petitioner, one last opportunity is granted to file rejoinder affidavit.
2. List as fresh on **25.01.2024**.
3. Interim order is extended till the next date of listing.

(Kshitij Shailendra, J) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 18.1.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Rejoinder affidavit filed today, is taken on record.
2. List as fresh on 1 February 2024.
3. The interim order is extended till the next date of listing.

Order Date :- 25.1.2024

Mukesh Kr.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Court No. - 21

Case :- WRIT - C No. - 29622 of 2023

Petitioner :- Narendra Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pulak Ganguly

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. The instant petition has been filed for quashing of the order dated 22.6.2023, passed by respondent no. 4 on the representation of the petitioner dated 1.6.2023. By the said order, respondent no. 4 has held that a sum of Rs. 4,48,028/- is still payable by the petitioner. It is recorded in the impugned order that initially there was an assessment order for a sum of Rs. 2,07,664/- against the petitioner and Rs. 3.20 lakhs towards compounding fee. The petitioner challenged the same in Writ - C No. 2368 of 2007 wherein a conditional interim order was passed on 22.01.2007 permitting the petitioner to deposit Rs. 1,50,000/- and upon deposit of the said amount, the Electricity Department was directed to restore his electricity supply. The said writ petition was ultimately dismissed for non-prosecution on 21.3.2023. At that time, the remaining amount due was Rs. 32,664/-. The respondent-Electricity Department claims to have imposed interest on the said amount @ 16% per annum and is now claiming Rs. 4,48,028/- from the petitioner.

2. Learned counsel for the petitioner submits that at the time of dismissal of the writ petition, only Rs. 32,664/- was due. The demand of Rs. 4,48,028/- is *ex facie* illegal and arbitrary.

3. Learned counsel for the respondent-Electricity Department, does not dispute that the amount due against the petitioner at the time of dismissal of the writ petition was a sum of Rs. 32,664/-. He tried to explain how the amount has swelled to Rs. 4,48,028/- by placing reliance on Clause 8.1(c)(ii) of the U.P. Electricity Supply Code, 2005 which stipulates that interest @ 16% per annum would be chargeable after expiry of thirty days from the date of order of assessment.

4. Concededly, there was an interim order operating in favour of the petitioner. During pendency of the writ petition, the petitioner had duly complied with the conditions imposed by this Court while granting the interim order. The amount due at the time of dismissal of the writ petition was Rs. 32,664/-, therefore, demand of Rs. 4,48,028/- being made from the petitioner, is highly inflated and does not appear to be justified in any event.

5. As jointly agreed by counsel for the parties, we dispose of the instant petition by providing that in case the petitioner deposits rupees one lakh before respondent no. 4 within three weeks from today, it will be in full and final satisfaction of the claim against the petitioner. Upon deposit of the said amount, entire proceedings will stand dropped.

6. After clearing the dues, we leave it open to the petitioner to apply for fresh electricity connection in his name. In case any such application is filed, it will be duly considered in accordance with law.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 1.2.2024

Jaideep/-